

CV-25-005600 MILLS, MICHAEL vs CITY OF MODESTO – Defendant's Motion for Summary Judgment – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: Evidentiary objections: Plaintiff's objections: OVERRULED. Goes to weight, not admissibility. OVERRULED. The Court does not appear to have these pages of the deposition. SUSTAINED. SECOND 3. SUSTAINED. Even if overruled, the Court would consider the apparent overbreadth of the sworn claims. OVERRULED. OVERRULED. OVERRULED. Defendant's objections: To Walsh declaration: OVERRULED. "One or more," is not necessarily "multiple." 2.-7. OVERRULED. Dr. Walsh's declaration contains much boilerplate language, but appears to reference the specific defects at the location. 8. OVERRULED. 9. OVERRULED. 10. OVERRULED. 11. OVERRULED. 12. OVERRULED. To Robyn Mills declaration: 13. OVERRULED. 14. OVERRULED. 15. OVERRULED. 16. SUSTAINED on foundational grounds. To Michael Mills declaration: 17. OVERRULED. 18. OVERRULED. 19. SUSTAINED as to "trip and fall hazard," only. Procedural notes: The Court granted Plaintiff's request for additional time for discovery and to address defects in its initial filings. No additional information was provided and the defects in the Wong declaration were repaired. Factual Summary: Plaintiff fell on an area of the sidewalk which had cracks, and raised asphalt. The cracks appear to be safely less than an inch high. The height of the raised asphalt is not entirely clear to me. I have reviewed the photographs and evidence. Plaintiff testified that he stumbled on a crack and then hit the slightly raised asphalt and fell. Defendant asserts two grounds for its motion. The first is triviality, which at this stage the Court rejects for the reasons outlined below. The second is lack of notice, which is partially based on sworn statements which are inconsistent with other sworn statements by the same people and is not well-taken. Triviality Government Code §830.2 defines "excluded conditions" as those that a trier of fact determines are of "such a minor, trivial or insignificant nature in view of the surrounding circumstances" that, when the property is foreseeably used with due care, the risk of injury created would not be substantial." *Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102 is instructive. In *Stack*, the Court reviewed the lengthy history of sidewalk defect cases and expressly endorsed a holistic view, where the size of a defect was one factor to consider. (Even considering the disputes over the sizes of the defects in the sidewalk here, the primary defect in *Stack* was larger.) Here, the declaration of Bong Walsh asserts – with some degree of boilerplate – that the specific defects here combined to make for a hazard. Further, I lack full measurements of all defects and it is unclear whether this defect is trivial. In some cases, triviality of the risk cannot be established as a matter of law because under the particular facts reasonable minds may differ about whether the risk was trivial. (*Stathoulis v City of Montebello* (2008) 164 Cal.App.4th 559, 569 (triable issue of fact if competing and conflicting evidence regarding size, nature, and quality of defect to surface presented danger to pedestrians exercising ordinary care).) In this case, it is not entirely clear what the net change between the crack defect and the raised asphalt creates. Plaintiff's familiarity with the area is a factor to consider, although the *Stack* court entirely disregarded it under the theory that the issue was the danger to the general public. In this case, there had likely been thousands of safe traversals of the area by Plaintiff. The Court adopts the *Stack* court's views on Plaintiff's familiarity with the area for the purposes of this motion only. Walsh's expert opinion on the dangerousness of the condition is not so unsupported from the facts that it is insufficient to find a reasonable basis for the conclusion. Defendant observes accurately that this Court can disregard expert declarations where they are unsupported, but here there are references to the subject defects and a rationale for the dangerousness of that defect. Notice Richard Mendoza declared under penalty of perjury "A review of the City of Modesto's records reveals that the City had received no complaints about an offset or trip hazard on the sidewalk in front of [the address] at any time prior to August 9, 2024. Based on this review, I can confidently state that the City of Modesto had no notice of an obviously dangerous condition involving the sidewalk where Plaintiff claims to have tripped and fallen prior to August 9, 2024." At his deposition, his confidence had abated. He acknowledged that prior repairs had apparently been done by the City, and that was likely in response to a citizen call and a review of the sidewalk status. Whether the City had other notice or not is sufficiently disputed by the Robyn Mills declaration. Further, the Court must consider the countervailing declaration in the context of what appear to be inaccurate assertions Government Code section 835(b) provides that liability exists when the public entity "had actual or constructive notice of the dangerous condition ... a sufficient time prior to the injury to have taken measures to protect against the dangerous condition." Further, a public entity has constructive notice of a dangerous condition if Plaintiff proves that the condition has existed "for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character." Whether the defect had existed for an adequate length of time and whether the defect was sufficiently conspicuous that the entity should fairly be charged with notice both of its existence and of its dangerous character are ordinarily questions of fact to be resolved from all relevant circumstances. (*Carson v Facilities Dev. Co.* (1984) 36 Cal.3d 830). Both actual and constructive notice are sufficiently raised by Plaintiff to bring about a triable issue.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 6ed1110b220be639031dbf1911399aa1b3d9f5e99147c0bfa83a9bf1f48a4dd0

CV-25-005600 – MILLS, MICHAEL vs CITY OF MODESTO – Defendant's Motion for Summary Judgment – DENIED.

Evidentiary objections:

Plaintiff's objections:

OVERRULED. Goes to weight, not admissibility.

OVERRULED. The Court does not appear to have these pages of the deposition.

SUSTAINED.

SECOND 3. SUSTAINED. Even if overruled, the Court would consider the apparent overbreadth of the sworn claims.

OVERRULED.

OVERRULED.

OVERRULED.

Defendant's objections:

To Walsh declaration:

OVERRULED. "One or more," is not necessarily "multiple."

2.-7. OVERRULED. Dr. Walsh's declaration contains much boilerplate language, but appears to reference the specific defects at the location.

8. OVERRULED.

9. OVERRULED.

10. OVERRULED.

11. OVERRULED.

12. OVERRULED.

To Robyn Mills declaration:

13. OVERRULED.

14. OVERRULED.

15. OVERRULED.

16. SUSTAINED on foundational grounds.

To Michael Mills declaration:

17. OVERRULED.

18. OVERRULED.

19. SUSTAINED as to "trip and fall hazard," only.

Procedural notes: The Court granted Plaintiff's request for additional time for discovery and to address defects in its initial filings. No additional information was provided and the defects in the Wong declaration were repaired.

Factual Summary: Plaintiff fell on an area of the sidewalk which had cracks, and raised asphalt. The cracks appear to be safely less than an inch high. The height of the raised asphalt is not entirely clear to me. I have reviewed the photographs and evidence.

Plaintiff testified that he stumbled on a crack and then hit the slightly raised asphalt and fell.

Defendant asserts two grounds for its motion. The first is triviality, which at this stage the Court rejects for the reasons outlined below. The second is lack of notice, which is partially based on sworn statements which are inconsistent with other sworn statements by the same people and is not well-taken.

Triviality

Government Code §830.2 defines "excluded conditions" as those that a trier of fact determines are of "such a minor, trivial or insignificant nature in view of the surrounding circumstances" that, when the property is foreseeably used with due care, the risk of injury created would not be substantial."

Stack v. City of Lemoore (2023) 91 Cal.App.5th 102 is instructive. In Stack, the Court reviewed the lengthy history of sidewalk defect cases and expressly endorsed a holistic view, where the size of a defect was one factor to consider. (Even considering the disputes over the sizes of the defects in the sidewalk here, the primary defect in Stack was larger.)

Here, the declaration of Bong Walsh asserts – with some degree of boilerplate – that the specific defects here combined to make for a hazard. Further, I lack full measurements of all defects and it is unclear whether this defect is trivial.

In some cases, triviality of the risk cannot be established as a matter of law because under the particular facts reasonable minds may differ about whether the risk was trivial. (*Stathoulis v City of Montebello* (2008) 164 Cal.App.4th 559, 569 (triable issue of fact if competing and conflicting evidence regarding size, nature, and quality of defect to surface presented danger to pedestrians exercising ordinary care).) In this case, it is not entirely clear what the net change between the crack defect and the raised asphalt creates.

Plaintiff's familiarity with the area is a factor to consider, although the Stack court entirely disregarded it under the theory that the issue was the danger to the general public. In this case, there had likely been thousands of safe traversals of the area by Plaintiff. The Court adopts the Stack court's views on Plaintiff's familiarity with the area for the purposes of this motion only.

Walsh's expert opinion on the dangerousness of the condition is not so unsupported from the facts that it is insufficient to find a reasonable basis for the conclusion. Defendant observes accurately that this Court can disregard expert declarations where they are unsupported, but here there are references to the subject defects and a rationale for the dangerousness of that defect.

Notice

Richard Mendoza declared under penalty of perjury "A review of the City of Modesto's records reveals that the City had received no complaints about an offset or trip hazard on the sidewalk in front of [the address] at any time prior to August 9, 2024. Based on this review, I can confidently state that the City of Modesto had no notice of an obviously dangerous condition involving the sidewalk where Plaintiff claims to have tripped and fallen prior to August 9, 2024."

At his deposition, his confidence had abated. He acknowledged that prior repairs had apparently been done by the City, and that was likely in response to a citizen call and a review of the sidewalk status.

Whether the City had other notice or not is sufficiently disputed by the Robyn Mills declaration. Further, the Court must consider the countervailing declaration in the context of what appear to be inaccurate assertions

Government Code section 835(b) provides that liability exists when the public entity "had actual or constructive notice of the dangerous condition ... a sufficient time prior to the injury to have taken measures to protect against the dangerous condition."

Further, a public entity has constructive notice of a dangerous condition if Plaintiff proves that the condition has existed "for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character." Whether the defect had existed for an adequate length of time and whether the defect was sufficiently conspicuous that the entity should fairly be charged with notice both of its existence and of its dangerous character are ordinarily questions of fact to be resolved from all relevant circumstances. (*Carson v Facilities Dev. Co.* (1984) 36 Cal.3d 830).

Both actual and constructive notice are sufficiently raised by Plaintiff to bring about a triable issue.